

## 23STCV27396 23STCV27396

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-13

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### Tentative Ruling

Bryant v. Beetle House LA, Case no.

23STCV27396

Hearing date July 13, 2026

### Cross-Complainant

Saffir's Motion to Compel Further - UNOPPOSED

### Plaintiffs

Bryant and Strapko sue defendant NBK Branded Entertainment, Inc. dba Beetle House and others, alleging assault and battery, for injuries sustained when they were attacked by Doe assailant while leaving defendant NBK's premises.

Moving party defendant/cross-complainant Saffir, as trustee of the Donna M. Zenobia Living Trust Dated February 2000 and Restated September 8, 2001, cross-complains for indemnity, alleging Houston Hospitality employed Doe assailant.

### The

court granted Saffir's motion to compel further responses as to form and special interrogatories, set one, against Houston Hospitality. 11/18/25 Min. Order. Saffir now moves to compel further responses to RFPs, set one, and for \$1,430 in sanctions. There is no opposition.

### Code

Civ. Proc. §2031.310(a) states "the demanding party may move for an order compelling further response to the demand if the demanding party deems that . .

. (1) A statement of compliance with the demand is incomplete. (2) A

representation of inability to comply is inadequate, incomplete, or evasive..."

Saffir

moves to compel further responses to RFPs nos. 1-11, arguing the responses served in response to the court's prior order were evasive, nonresponsive, improperly limited the scope of production requested or failed to serve further responses entirely. See Sep. Statement. Saffir is entitled to further responses.

The

court may impose sanctions, including attorneys' fees, against a party that engages in a "misuse of the discovery process." Code Civ. Proc.

§§2023.010; 2023.030(a). The court "shall impose a monetary sanction" against any party, person or attorney who unsuccessfully makes a motion to compel. *Id.* However, if the court finds that party acted with "substantial justification or that other circumstances make the imposition of the sanction unjust," sanctions are not to be awarded. Code Civ. Proc. §2033.290(d). As the motion is unopposed, Houston Hospitality cannot show substantial justification. Sanctions are warranted.

Saffir

requests sanctions of \$1,430. See Decl. Torsney, para. 5. Saffir requests a reasonable rate of \$195/hour. *Id.* Saffir requests 7 hours for research and drafting. *Id.* This is unreasonable for a 7-page motion with a 1-page declaration. The court awards 4 hours for research/drafting, plus 1 hour for hearing (\$195x5), plus the requested \$65 in filing fees. *Id.* Total sanctions of \$1,040, joint and several against Houston Hospitality and its counsel of record.

GRANTED;

further, code-compliant responses are due within 30 days. Sanctions payable as above within 30 days.